

EXHIBIT A – Summons and Complaint

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
SHAMALE LAWSON, TAMIKA FREDERICK,
SAMORY HILL, an infant, by his parent and
natural guardian, DOREEN HILL, and
DOREEN HILL individually,

Plaintiffs,

-against-

THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER JUSTIN GRIECO, individually and in his
official capacity, POLICE OFFICER GREGG MINARDI, P.O.
THOMAS NAPOLITANO, individually and in his official capacity,
SERGEANT ADNAN RADONCIC, individually and in his official
capacity, POLICE OFFICERS JOHN DOE 1-10, and OTHER
POLICE OFFICERS WHOSE IDENTITIES ARE IN THE
SOLE POSSESSION OF THE NEW YORK CITY POLICE
DEPARTMENT,

Defendants.
-----X

SUMMONS

Index No.: 501341/2013

Plaintiff designates
Kings County
as the place of trial.

The basis of venue is:
Location of the incident

Plaintiffs Shamale Lawson &
Tamika Frederick reside at:
300 Wortman Avenue
Brooklyn, New York 11207

Plaintiff Samory Hill &
Doreen Hill reside at:
295 Cozine Avenue
Brooklyn, New York 11207

Date filed: March 15, 2013

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the plaintiff's attorneys, within twenty days after the services of this Summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
March 15, 2013

GENTILE & ASSOCIATES
By: MICHAEL TALASSAZAN
Attorneys for Plaintiffs
233 Fifth Avenue
New York, NY 10016
(212) 689-6009

2013 MAR 19 PM 12:56
CITY OF N.Y. LAW DEPT.
OFFICE OF CORP. COUNSEL
COMMUNICATIONS UNIT

To:

THE CITY OF NEW YORK

100 Church Street

New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT

1 Police Plaza

New York, New York 10001

P.O. JUSTIN GRIECO

P.O. GREG MINARDI

P.O. THOMAS NAPOLITANO

SGT. ADNAN RADONCIC

P.O. "JOHN DOE" 1-10

OTHER POLICE OFFICERS WHOSE IDENTITIES

ARE IN THE SOLE POSSESSION OF THE NEW

YORK CITY POLICE DEPARTMENT

1 Police Plaza

New York, New York 10001

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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THOMAS NAPOLITANO, individually and in his official capacity,
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**VERIFIED
COMPLAINT**

-----X
Plaintiffs, by their attorneys Gentile & Associates, as and for his complaint against
defendants, states, upon information and belief, as follows:

1. At the time of the commencement of this action, plaintiff SHAMALE LAWSON was and still is a resident of the County of Kings, State of New York.
2. At the time of the commencement of this action, plaintiff TAMIKA FREDERICK was and still is a resident of the County of Kings, State of New York.
3. At the time of the commencement of this action, plaintiff SAMORY HILL was and still is a resident of the County of Kings, State of New York.
4. At the time of the commencement of this action, plaintiff DOREEN HILL was and still is a resident of the County of Kings, State of New York.
5. The cause of action alleged herein arose in the County of Kings and State of New York.
6. This action falls within one of more of the exceptions set forth in CPLR § 1602.

7. At all times relevant herein, defendant THE CITY OF NEW YORK was and still is a municipal corporation.

8. At all times relevant herein, defendant New York City Police Department was and still is a department of the City of New York.

9. At all times relevant herein, there existed a public park known as Martin Luther King Jr. Park, within the intersections of Blake Avenue and Bradford Street, Brooklyn, New York.

10. At all times relevant herein, defendant POLICE OFFICER JUSTIN GRIECO was a police officer working within the scope of his employment with the New York City Police Department.

11. At all times relevant herein, defendant SERGEANT ADNAN RADONCIC was a sergeant working within the scope of his employment with the New York City Police Department.

12. At all times relevant herein, defendant POLICE OFFICER GREGG MINARDI was a police officer working within the scope of his employment with the New York City Police Department.

13. At all times relevant herein, defendant POLICE OFFICER THOMAS NAPOLITANO was a New York City Police Department police officer working within the scope of his employment with the New York City Police Department.

14. At all times relevant herein, defendant POLICE OFFICERS "JOHN DOE" 1-10 were unidentified police officers working within the scope of their employment with the New York City Police Department.

15. At all times relevant herein, defendants OTHER POLICE OFFICERS WHOSE IDENTITIES ARE IN THE SOLE POSSESSION OF THE NEW YORK CITY POLICE DEPARTMENT were unidentified police officers working within the scope of their employment

with the New York City Police Department.

16. Prior hereto, on May 29, 2012, and within the time prescribed by law, a sworn Notice of Claim, and on June 5, 2012 a Supplemental Notice of Claim, stating among other things, the time when and place where the injuries and damages were sustained, together with plaintiffs' demands for adjustment thereof was duly served on the Claimants' behalf on the Comptroller for the City of New York, and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

17. Statutory 50-H hearings were conducted on December 27, 2012.

18. At all times relevant herein, defendant THE CITY OF NEW YORK, by its agents, servants and/or licensees, operated a police force known as the NEW YORK CITY POLICE DEPARTMENT and its personnel.

19. At all times relevant herein, defendant THE CITY OF NEW YORK, by its agents, servants and/or licensees, managed a police force known as the NEW YORK CITY POLICE DEPARTMENT and its personnel.

20. At all times relevant herein, defendant THE CITY OF NEW YORK, by its agents, servants and/or licensees, trained a police force known as the NEW YORK CITY POLICE DEPARTMENT.

21. At all times relevant herein, defendant THE CITY OF NEW YORK, by its agents, servants and/or licensees, maintained a police force known as the NEW YORK CITY POLICE DEPARTMENT and its personnel.

22. At all times relevant herein, defendant THE CITY OF NEW YORK, by its agents, servants and/or licensees, supervised a police force known as the NEW YORK CITY POLICE DEPARTMENT and its personnel.

23. At all times relevant herein, defendant THE CITY OF NEW YORK, by its agents, servants and/or licensees, controlled a police force known as the NEW YORK CITY POLICE DEPARTMENT and its personnel.

24. At all times relevant herein, defendant POLICE OFFICER JUSTIN GRIECO was acting within and in furtherance of his employment with defendant THE CITY OF NEW YORK.

25. At all times relevant herein, defendant POLICE OFFICER JUSTIN GRIECO was acting within and in furtherance of his employment with defendant the NEW YORK CITY POLICE DEPARTMENT.

26. At all times relevant herein, defendant SERGEANT ADNAN RADONCIC was acting within and in furtherance of his employment with defendant THE CITY OF NEW YORK.

27. At all times relevant herein, defendant SERGEANT ADNAN RADONCIC was acting within and in furtherance of his employment with defendant the NEW YORK CITY POLICE DEPARTMENT.

28. At all times relevant herein, defendant POLICE OFFICER GREGG MINARDI was acting within and in furtherance of his employment with defendant THE CITY OF NEW YORK.

29. At all times relevant herein, defendant POLICE OFFICER GREGG MINARDI was acting within and in furtherance of his employment with defendant the NEW YORK CITY POLICE DEPARTMENT.

30. At all times relevant herein, defendant POLICE OFFICER THOMAS NAPOLITANO was acting within and in furtherance of his employment with defendant THE CITY OF NEW YORK.

31. At all times relevant herein, defendant POLICE OFFICER THOMAS NAPOLITANO was acting within and in furtherance of his employment with defendant the NEW YORK CITY POLICE DEPARTMENT.

32. At all times relevant herein, defendant POLICE OFFICER GREGG MINARDI was acting within and in furtherance of his employment with defendant THE CITY OF NEW YORK.

33. At all times relevant herein, defendant POLICE OFFICER GREGG MINARDI was acting within and in furtherance of his employment with defendant the NEW YORK CITY POLICE DEPARTMENT.

34. At all times relevant herein, defendant POLICE OFFICERS "JOHN DOE" 1-10 were acting within the scope and in furtherance of their employment with defendant THE CITY OF NEW YORK.

35. At all times relevant herein, defendant POLICE OFFICERS "JOHN DOE" 1-10 were acting within the scope and in furtherance of their employment with defendant NEW YORK CITY POLICE DEPARTMENT.

36. At all times relevant herein, POLICE OFFICERS WHOSE IDENTITIES ARE IN THE SOLE POSSESSION OF THE NEW YORK CITY POLICE DEPARTMENT, were acting within the scope and in furtherance of their employment with defendant THE CITY OF NEW YORK.

37. At all times relevant herein, defendant POLICE OFFICERS WHOSE IDENTITIES ARE IN THE SOLE POSSESSION OF THE NEW YORK CITY POLICE DEPARTMENT, were acting within the scope and in furtherance of their employment with defendant NEW YORK CITY POLICE DEPARTMENT.

38. At all times herein, the individually named defendants and other police personnel were acting within the scope and in the furtherance of their employment with the New York City Police Department and the City of New York.

39. On or about March 12, 2012, plaintiff SHAMALE LAWSON was lawfully present at the aforementioned park.

40. On or about March 12, 2012, plaintiff SHAMALE LAWSON was caused to be subjected to unreasonable force, physical assault, battery, verbal abuse, search, seizure, humiliation, and the deprivation of his civil, human, and constitutional rights by the herein referenced Police Officers.

41. On or about March 12, 2012, plaintiff SHAMALE LAWSON was wrongfully arrested, detained, and confined.

42. During his unlawful detainment plaintiff SHAMALE LAWSON was subject to further humiliation, disparagement, and deprivation of basic civil and human rights.

43. On or about March 13, 2012, plaintiff SHAMALE LAWSON was released from custody from a side door of Central Booking in the County of Kings, New York.

44. After plaintiff SHAMALE LAWSON was released from his unlawful detainment, he was not arraigned.

45. The plaintiff SHAMALE LAWSON was subject to a retinal scan, fingerprinting and mug shots although no formal charges were filed.

46. No negligence or wrongful act of any kind on the part of the plaintiff SHAMALE LAWSON contributed to the occurrence alleged herein in any manner whatsoever.

47. On or about March 12, 2012, plaintiff SAMORY HILL was lawfully present at the aforementioned park.

48. On or about March 12, 2012, plaintiff SAMORY HILL was caused to be subjected to unreasonable force, physical assault, battery, verbal abuse, search, seizure, humiliation, and the deprivation of his civil, human, and constitutional rights by the herein referenced Police Officers.

49. On or about March 12, 2012, plaintiff SAMORY HILL was wrongfully arrested, detained, and confined.

50. During his unlawful detainment plaintiff SAMORY HILL was subject to further humiliation, disparagement, and deprivation of basic civil and human rights.

51. On or about March 13, 2012, plaintiff SAMORY HILL was released from custody from a side door of Central Booking in the County of Kings, New York.

52. After plaintiff SAMORY HILL was released from his unlawful detainment, he was not arraigned.

53. The plaintiff SAMORY HILL was subject to a retinal scan, fingerprinting and mug shots although no formal charges were filed.

54. No negligence or wrongful act of any kind on the part of the plaintiff SAMORY HILL contributed to the occurrence alleged herein in any manner whatsoever.

**AS AND FOR A FIRST CAUSE OF ACTION
FOR NEGLIGENCE**

55. The wrongful arrest, detention and assault herein and the results thereof were due to and caused by the joint, several and concurrent negligence of the defendants their agents, servants, employees and/or licensees in negligently, carelessly, maliciously, wrongfully, recklessly and with gross

negligence causing, allowing and/or permitting the plaintiffs to be physically detained, assaulted, battered, falsely arrested, maliciously prosecuted, and deprived of their civil rights; in the use of wantonness, recklessness and carelessness that accompanied the unbridled discretion in the false arrest, detention, malicious prosecution, and processing including finger printing, retinal scanning, and mug shots; in failing to guard against the use of improper arrest and prosecution procedures and excessive physical force against to members of the public, including plaintiffs; in mocking and ridiculing the plaintiffs during a line up at the precinct; in causing the plaintiffs to be wrongfully arrested by racial and economic profiling; in the careless, reckless and negligent use of arrest and prosecution procedures, and excessive force; in the wrongful, willful, malicious and negligent and grossly negligent use of excessive physical force such that plaintiffs was physically detained, assaulted, falsely arrested and deprived of their civil rights; in failing to properly hire and supervise the selection of competent police officers; in negligently selecting, hiring, training and supervising police officers such that said officers would negligently, carelessly, recklessly, wrongfully, willfully, maliciously and with gross negligence falsely arrest, employ the use of needless and/or excessive physical force and improperly perform the other acts of negligence that led to the wrongful seizures, searches, detainments, and arrests alleged herein; in failing to give proper instruction and training to police officers regarding proper arrest procedures and in the necessary and safe use of physical force; in the negligent and careless hiring, screening, training and supervision of police personnel; in promulgating, maintaining, instigating, employing and/or using substandard policies and practices in arrest procedures; in use of physical force when it was not necessary or required; in failing to punish improper police procedures; in failing to retrain and instruct personnel in proper police procedures; in failing to act with reasonable prudence in arrest procedures and in the use of physical force so as to avoid injury; in failing to act with reasonable prudence by use of proper arrest procedures; in failing to train police officers to refrain from employing physical force

when the use of such physical force was not necessary or required; in failing to act with reasonable prudence in the necessary, safe use of physical force so as to avoid injury; in failing to act with reasonable prudence under the circumstances; in failing to train police officers from instituting improper arrests and prosecutions; in using improper and non-indicated equipment; in failing to exercise that care commensurate with the danger involved; in failing to properly hire, retain, instruct, train and supervise their employees, servants, agents and/or licensees; in failing to properly determine when arrest and prosecution is appropriate and when the use of physical force is necessary or required; in failing to properly hire, retain, instruct, train and supervise their employees, servants, agents and/or licensees to approach and otherwise interact with members of the public; in violating and otherwise failing to adhere to and properly follow guidelines and standards used and promulgated by the New York City Police Department; in violating and otherwise failing to adhere to and properly follow good and accepted guidelines and standards of police work practice then and there prevailing; and in failing to exercise due care and proper professional judgment under the circumstances then and there prevailing at the time of the plaintiffs seizures, searches, detainments, and arrests.

56. As a result of the foregoing, plaintiffs was caused to sustain serious injuries and to have suffered pain, shock, mental anguish public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiffs have been caused to incur and will continue to incur expenses for legal representation, counseling, psychiatric, psychological, and medical care; and plaintiffs was and will continue to be rendered unable to perform their normal activities and duties and have sustained a resultant loss therefrom.

57. As a result of the foregoing, plaintiffs were damaged in an amount greater than the jurisdictional limits of all lower courts.

58. As a result of the foregoing, plaintiffs were caused to sustain serious injuries and to have suffered pain, shock, mental anguish, public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiffs have been caused to incur and will continue to incur expenses for legal representation, counseling, psychiatric, psychological, and medical care; and plaintiffs was and will continue to be rendered unable to perform their normal activities and duties and have sustained a resultant loss therefrom.

**AS AND FOR A SECOND CAUSE OF ACTION
FOR INTENTIONAL TORTS**

59. Plaintiffs repeat and realleges with the same force and effect as if more fully set forth hereat each and every paragraph of the complaint set forth above.

60. Beginning on March 12, 2012 and continuing through plaintiffs release from custody and the termination of all charges against them, plaintiffs were caused to be deliberately, maliciously, willfully and with gross negligence physically detained, falsely arrested and charged with crimes, humiliated, and deprived of their property by defendants, their agents, servants, employees and/or licensees.

61. The aforementioned occurrence took place due to the willful, wanton and intentional acts and/or omissions of the defendants and their employees, agents, servants and/or licensees.

62. As a result of the foregoing, plaintiffs were caused to sustain serious injuries and to have suffered pain, shock, mental anguish, public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiffs have been caused to incur and will continue to incur expenses for legal representation, counseling, psychiatric, psychological, and medical care; and plaintiffs was and will continue to be rendered unable to perform their normal activities and duties and have sustained a resultant loss therefrom.

63. As a result of the foregoing, plaintiffs were damaged in an amount greater than the jurisdictional limits of all lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
CONSTITUTIONAL TORTS, MONELL ACTION
AND VIOLATION OF 42 U.S.C. §1983**

64. Plaintiffs repeat and reallege with the same force and effect as if more fully set forth hereat each and every paragraph of the complaint set forth above.

65. The above stated acts and omissions constituted deprivation of plaintiffs' rights and freedoms and under the Federal and State constitutional and civil rights laws and further, constitute actionable wrongs pursuant to 42 U.S.C. 1983, and the Monell Doctrine.

66. Defendants have engaged in a pattern and practice of instituting discriminatory stop and frisks, warrantless searches, seizures, and arrests, and have engaged in a pattern and practice of racial, socio-economic, and cultural profiling, in violation of the United States Constitution including the First, Fourth, Fifth, Sixth, and Fourteenth Amendments.

67. As a result of the foregoing, plaintiffs were caused to sustain serious injuries and to have suffered pain, shock, mental anguish public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiffs have been caused to incur and will continue to incur expenses for legal representation counseling, psychiatric, psychological, and medical care; and plaintiffs was and will continue to be rendered unable to perform their normal activities and duties and have sustained a resultant loss therefrom.

68. As a result of the foregoing, plaintiffs were damaged in an amount greater than the jurisdictional limits of all lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
ABUSE OF PROCESS**

69. Plaintiffs repeat and reallege with the same force and effect as if more fully set forth hereat each and every paragraph of the complaint set forth above.

70. The seizures, arrests, detainments, and incarcerations of the plaintiff's was intended to accomplishing an improper purpose of profiling alleged gang members and minority groups in the County of Kings.

71. That at all times hereinafter mentioned defendant, the aforementioned Police officers instituted the arrests to effectuate the improper purpose of profiling and gathering vital information that was in violation of the plaintiff's constitutional and civil rights.

72. The use of the defendant's police authority to arrest the plaintiff's was an improper display of the process by the defendants for a collateral purpose removed from the purpose for which the criminal justice and arrest process is intended.

73. The acts complained of herein constitute abuse of process.

74. As a result of the foregoing, plaintiffs were caused to sustain serious injuries and to have suffered pain, shock, mental anguish public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiffs have been caused to incur and will continue to incur expenses for legal representation counseling, psychiatric, psychological, and medical care, and plaintiffs was and will continue to be rendered unable to perform their normal activities and duties and have sustained a resultant loss therefrom.

75. As a result of the foregoing, plaintiffs were damaged in an amount greater than the jurisdictional limits of all lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
NEGLIGENT INFLICTION OF EMOTIONAL HARM**

76. Plaintiffs repeat and reallege with the same force and effect as if more fully set forth hereat each and every paragraph of the complaint set forth above.

77. The acts complained of herein constitute negligent infliction of emotional harm.

78. As a result of the foregoing, plaintiffs were caused to sustain serious injuries and to have suffered pain, shock, mental anguish public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiffs have been caused to incur and will continue to incur expenses for legal representation counseling, psychiatric, psychological, and medical care, and plaintiffs was and will continue to be rendered unable to perform their normal activities and duties and have sustained a resultant loss therefrom.

79. As a result of the foregoing, plaintiffs were damaged in an amount greater than the jurisdictional limits of all lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
INTENTIONAL INFLICTION OF EMOTIONAL HARM**

80. Plaintiffs repeat and realleges with the same force and effect as if more fully set forth hereat each and every paragraph of the complaint set forth above.

81. The aforementioned occurrence took place due to the malicious, willful, wanton and intentional acts and/or omissions of the defendants and the employees, agents, servants and/or licensees of defendants all of whom were acting in the scope of their authority and within the scope and in the furtherance of their employment.

82. The acts complained of were extreme and outrageous under the circumstances.

83. The acts complained of herein constitute intentional infliction of emotional harm.

84. As a result of the foregoing, plaintiffs were caused to sustain serious injuries and to have suffered pain, shock, mental anguish public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiffs have been caused to incur and will continue to incur expenses for legal representation counseling, psychiatric, psychological, and medical care; and plaintiffs was and will continue to be rendered unable to perform their normal activities and duties and have sustained a resultant loss therefrom.

85. As a result of the foregoing, plaintiffs were damaged in an amount greater than the jurisdictional limits of all lower courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF DOREEN HILL**

86. Plaintiff DOREEN HILL repeats, reiterates and realleges each and every allegation contained herein as though set forth at length herein.

87. At all times hereinafter relevant, plaintiff DOREEN HILL was the parent and natural guardian of her son, SAMORY HILL, and as such was entitled to the society, and services of her son, SAMORY HILL.

88. By reason of the foregoing, plaintiff DOREEN HILL was deprived of the society and services of the plaintiff SAMORY HILL and shall forever be deprived of said society and services, was caused to provide additional services to assist plaintiff SAMORY HILL and was caused to incur expenses and special damages.

89. By reason of the foregoing, plaintiff DOREEN HILL was damaged in a sum that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A EIGHTH CAUSE OF ACTION
ON BEHALF OF TAMIKA FREDERICK**

90. Plaintiff TAMIKA FREDERICK repeats, reiterates and realleges each and every allegation contained herein as though set forth at length herein.

91. At all times hereinafter relevant, plaintiff TAMIKA FREDERICK was the parent and natural guardian of her son, SHAMALE LAWSON, and as such was entitled to the society, and services of her son, SHAMALE LAWSON.

92. By reason of the foregoing, plaintiff TAMIKA FREDERICK was deprived of the society and services of the plaintiff SHAMALE LAWSON and shall forever be deprived of said society and services, was caused to provide additional services to assist plaintiff SHAMALE LAWSON and was caused to incur expenses and special damages.

93. By reason of the foregoing, plaintiff TAMIKA FREDERICK was damaged in a sum that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

PUNITIVE DAMAGES

94. Plaintiffs repeat and realleges with the same force and effect as if more fully set forth hereat each and every paragraph of the complaint hereinbefore set forth above.

95. The acts complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society.

96. As a result of the foregoing, plaintiffs were caused to sustain serious injuries and to have suffered pain, shock, mental anguish public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiffs have been caused to incur and will continue to incur expenses for legal representation counseling, psychiatric, psychological, and medical care; and

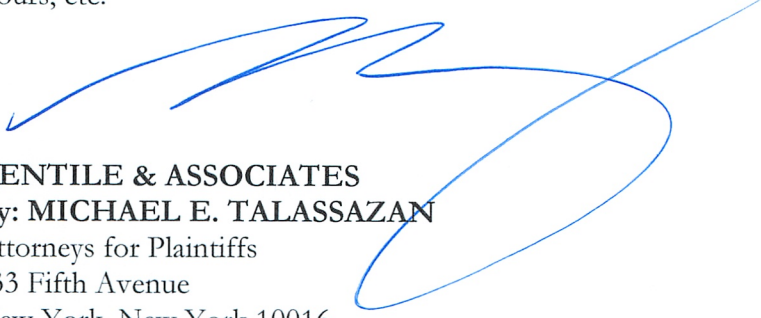
plaintiffs were and will continue to be rendered unable to perform their normal activities and duties and have sustained a resultant loss therefrom.

97. As a result of the foregoing, plaintiffs were damaged in an amount greater than the jurisdictional limits of all lower courts.

WHEREFORE, plaintiffs demand judgment against the defendants herein, in a sum exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction, together with attorneys' fees and the costs and disbursements of this action.

Dated: New York, New York
March 15, 2013

Yours, etc.



GENTILE & ASSOCIATES
By: MICHAEL E. TALASSAZAN
Attorneys for Plaintiffs
233 Fifth Avenue
New York, New York 10016
(212) 689-6009

ATTORNEY VERIFICATION

MICHAEL E. TALASSAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney associated with GENTILE & ASSOCIATES, attorneys for the plaintiffs. I have read the foregoing Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein that are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in the firm's files. I make this verification because plaintiffs are not presently in the county wherein this firm maintains their offices.

DATED: New York, New York
March 15, 2013



MICHAEL E. TALASSAZAN

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
SHAMALE LAWSON, TAMIKA FREDERICK,
SAMORY HILL, an infant, by his parent and
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-against-

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OFFICER GREGG MINARDI, P.O. THOMAS NAPOLITANO, individually and in his
official capacity, SERGEANT ADNAN RADONCIC, individually and in his official capacity,
POLICE OFFICERS JOHN DOE 1-10, and OTHER POLICE OFFICERS WHOSE
IDENTITIES ARE IN THE SOLE POSSESSION OF THE NEW YORK CITY POLICE
DEPARTMENT,

Defendants.

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*** Summons & Verified Complaint***

GENTILE & ASSOCIATES
Attorneys for Plaintiff
233 Fifth Avenue
New York, New York 10016
Tel (212) 689-6009
Fax (212) 213-1093